

25CHCV02035 25CHCV02035

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-09-17

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Case Number: 25CHCV02035 Hearing Date: September 17, 2026 Dept: F43

Dept. F43

Hearing Date: 09-17-26

Case # 25CHCV02035, Patino, et
al. v. Ford Motor Company, et al.

Trial Date: N/A

MOTION FOR ATTORNEY
FEES AND COSTS

MOVING PARTIES: Plaintiffs Alison Patino and Jeffrey Patino

RESPONDING PARTIES: Defendants Ford Motor Company and AutoNation
Ford Valencia

RELIEF REQUESTED

Order awarding plaintiffs \$22,328.50 in
attorney fees, 0.3 lodestar enhancement of \$6,698.55, and \$2,546.53 in costs
incurred in litigating this matter.

RULING: Motion is granted in the reduced amount of \$24,439.03:
\$21,892.50 in attorney fees and \$2,546.53 in costs. The court denies the request for a lodestar
multiplier.

SUMMARY OF ACTION

On June 12, 2025, plaintiffs Alison Patino and Jeffrey Patino (Plaintiffs) filed this lemon law action, concerning issues with a new 2024 Ford Maverick vehicle. Plaintiffs asserted action four causes of action under the Song-Beverly Consumer Warranty Act against defendants Ford Motor Company and AutoNation Ford Valencia. Ford filed an answer on July 11, 2025, and AutoNation filed an answer on July 22, 2025.

On January 27, 2026, the parties settled the matter when Plaintiffs accepted Defendants' Section 998 offer for a repurchase of Plaintiffs' vehicle plus reasonable attorneys' fees, costs, and expenses pursuant to Civil Code section 1794, subdivision (d). Plaintiffs filed a notice of settlement on January 28, 2025. (1/28/2026 Notice of Settlement.) Plaintiffs subsequently filed motions to enforce the settlement agreement and for sanctions on May 26, 2026. The motions were withdrawn on July 1, 2026, after Ford sent the settlement check on June 9, 2026.

On July 27, 2026, Plaintiffs filed the instant motion for \$22,328.50 in attorney fees, a lodestar enhancement of \$6,698.55, and \$2,546.53 in costs. Defendants filed an opposition on September 3, 2026, and Plaintiffs replied on September 10, 2026.

ANALYSIS

A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiffs are vehicle "buyers" and this matter

settled their favor, Plaintiffs are the prevailing parties entitled to attorney fees pursuant to Civil Code section 1794, subdivision (d).

1. Hourly

Rates

Plaintiffs request hourly rates of \$350 to \$525 for attorneys, \$250 for paralegals, and \$150 for legal assistants. (Declaration of Jorge L. Acosta ¶¶ 6-7, 9-14 [Lemon Pros, LLP].)

Defendants oppose the attorney hourly rates, contending Plaintiffs present no admissible evidence of the prevailing rate for attorneys conducting non-contingent litigation of the same type on a lemon law matter in Southern California. (Opp. at p. 4:12-25.) According to Defendants, the only evidence is a copy of the United States Consumer Law Attorney Fee Survey Report from 2017-2018, which is hearsay, and cherry-picked rulings on fee motions. Defendants also challenge the paralegal and legal assistant hourly rates and insists the court lower the rates to \$150 and \$100, respectively. (Opp. at p. 5:10-16.)

Defendants present no evidence to support reducing the paralegal and legal assistant rates.

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of establishing the prevailing market “through its own affidavits.” (MBNA Am. Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.) Once the moving party presents competent evidence of prevailing rates, the burden shifts to the opposing party. The opposing party may present rulings which concern hourly rates for comparable work from the relevant legal market. (Bronshteyn v. Dept. of Consumer Affairs (2025) 114 Cal.App.5th 537, 543, 546-547; Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1160-1162.) The court must engage in an objective analysis “to determine the prevailing rate in the community for comparable professional legal services[.]” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 156, citation omitted.) The court may “consider the attorney’s skill as reflected in the quality of the work, as well as the attorney’s reputation

and status.” (MBNA Am. Bank, N.A.,
supra, 147 Cal.App.4th Supp. at p. 13.)

After reviewing the moving papers, the opposing papers,
and the reply, the court finds that requested billing rates are reasonable,
with the exception of attorney Christopher Urner’s requested \$525 “contingency”
rate. However, because Mr. Urner is lead
counsel in this matter and a partner at The Lemon Pros, LLP, the court finds
the \$525 hourly rate is reasonable according to what the court expects would be
charged as a non-contingent rate for an attorney with Mr. Urner’s experience,
qualifications, and title.

Attorney Name

Requested Hourly Rate

Approved Hourly Rate

Jorge L. Acosta

\$450

\$450

Christopher Urner

\$525

\$525

Michael Saeedian

\$695

\$695

Paralegal Name

Requested Hourly Rate

Approved Hourly Rate

Anastasiia Dub

\$250

\$250

Celeste Luppino

\$250

\$250

Legal Assistant Name

Requested Hourly Rate

Approved Hourly Rate

Daisey Hernandez

\$150

\$150

Michael Poli

\$150

\$150

2. Billing Entries

Plaintiff requests fees for 2.8 hours of paralegal work, 11.3 hours of legal assistant work, and 54.2 hours of attorney work, including 6.9 hours for the instant motion.

The Song-Beverly Consumer Act only entitles Plaintiffs to attorney fees for "actual time expended."

(Civ. Code, § 1794, subd. (d).)

This means an analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) “A prevailing buyer has the burden of ‘showing that the fees incurred were ‘allowable,’ were reasonably necessary to the conduct of the litigation and were ‘reasonable in amount.’” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations omitted.) A verified fee bill is prima facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) If a fee request is opposed, “[g]eneral arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Ass’n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been raised, then plaintiff’s counsel bears the burden of showing that the fees were reasonably necessary, and the court has the discretion to reduce fees awarded. (En Palm, LLC v Teitler Family Trust (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to the factors from Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628, disapproved on other grounds by Equilon Enters. v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 68 fn.5.

The factors from Wollersheim are (1) the amount of money involved in the litigation; (2) the nature of the litigation and its difficulty and the intricacies and importance of the litigation; (3) the skill required and employed in handling the litigation, the necessity for skilled legal training and ability in trying the case, and counsel’s education and experience in the particular type of work involved; (4) the attention given to the case; (5) the success of the attorneys efforts; and (6) the time consumed by the litigation. (Id.)

Defendants ask the court to reduce the hours requested for clerical and administrative tasks, for written discovery served during a discovery stay imposed by Code Civ. Proc., § 871.26(e), for filing a standard complaint, for filing frivolous motions to enforce the settlement and for sanctions, and for anticipated hours related to this motion. (Opp. at pp. 6:8-7:11, 8:1-7 [requesting a 13.8-hour reduction].)

In response, Plaintiffs assert Ford fails to properly support its arguments by citing specific billing entries. (Reply at pp. 2:13-4:14.) According to Plaintiffs, the discovery was

served because Plaintiffs filed their complaint before Section 871.26 went into effect. Although Plaintiffs served the discovery after Section 871.26 went into effect, Plaintiffs did not know Defendants had opted-in until after the discovery was served and withdrew the discovery thereafter. (Reply at pp. 6:4-7:10.) Furthermore, Defendants' own conduct, failing to provide any date to return the vehicle, caused the six-month delay that resulted in the motions for enforcement and sanctions. (Reply at pp. 7:12-8:2.) After receiving the requested information, Plaintiffs were able to serve the final paperwork and withdrew the motions. Thus, all hours were reasonably incurred.

After reviewing the parties' arguments, the supporting evidence, and the law concerning Code Civ. Proc., § 871.26(e), the court reduces the requested fees for attorney Jorge L. Acosta by 0.1 hours, attorney Christopher Urner by 0.6 hours, and attorney Michael Saeedian by 1.3 hours.[1] The court also reduces paralegal Celeste Luppino's hours by 0.1 hours and legal assistant Daisey Hernandez's hours by 3.3 hours. Several billing entries include clerical tasks, and the hours billed for the discovery requests that were drafted on July 24, 2025, were not reasonably incurred. The court understands that Plaintiffs believed filing the Complaint before July 1, 2025, meant this matter is beyond the scope of Section 871.26. However, Plaintiffs' own billing records demonstrate Ford gave Plaintiffs notice of opting in concerning Section 871.26 on July 14, 2025, and Plaintiffs admit the final "opt-in" list was available sometime in June of 2025. As such, the court strikes 4.2 hours related to drafting the discovery on July 24, 2025. The court also strikes some time entries because the time billed appears excessive based on attorney experience.

Finally, the court notes that Plaintiffs requests 1.4 hours of attorney work at a rate of \$350 per hour for an individual named Alexandra Sloan. (Urner Decl., Exh. A at p. 11.) Because Plaintiffs provide no information about Ms. Sloan's credentials, qualifications, and title, the court does not award any attorney fees for Ms. Sloan.

Attorney Name

Requested Hours

Approved Hours

Approved

Rates

Total

Jorge L. Acosta

5.7

5.6

\$450

\$2,520

Christopher Urner

24

23.4

\$525

\$12,285

Michael Saeedian

8.8

7.5

\$695

\$5,212.50

Paralegal Name

Requested Hours

Approved Hours

Approved

Rates

Total

Anastasiia Dub

1.9

1.9

\$250

\$475

Celeste Luppino

0.9

0.8

\$250

\$200

Legal Assistant Name

Requested Hours

Approved Hours

Approved

Rates

Total

Daisey Hernandez

7.8

4.5

\$150

\$675

Michael Poli

3.5

3.5

\$150

\$525

Total approved lodestar: \$21,892.50

3. Lodestar Enhancement

After determining an appropriate lodestar figure, the court may determine whether that figure should be adjusted with a positive or negative multiplier. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 997.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 556.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional

benefit.” (Graham v. DaimlerChrysler Corp. (2005) 34 Cal.4th 553, 582.)

With the revised attorney fee amount, the 0.3x enhancement is \$6,567.75.

Plaintiffs contend the court should apply the multiplier due to the delay in settlement payment, expertise in this matter resulting in excellent recovery for Plaintiffs, and counsel's risk of taking this matter on contingency. (Mot. at p. 14:2-12.) In opposition, Defendants contend there was no novelty to Plaintiffs' claims, no special skill was displayed, and there was no actual uncertainty of prevailing the merits because Ford offered to repurchase the vehicle at the outset of the case. (Opp. at pp. 7:27-28, 8:1-7.) Defendants suggest that the court consider adjusting the fee award downward and reducing counsel's hourly rates.

The court finds Plaintiffs' arguments do not support applying any multiplier because this matter was settled in less than one year and the matter presented no complex or novel legal issues. Any delay caused by Defendants is included in the lodestar amount based on the emails between counsel concerning the surrender and counsel's communications with Plaintiffs.

Therefore, the court denies Plaintiffs' request to apply a multiplier.

B. Costs and Expenses

Plaintiffs seek \$2,546.53 in costs and expenses incurred in litigating this matter. (7/27/2026 Mem. of Costs.) Defendants do not challenge this request.

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700(a)(1).) Under the law, the court presumes a verified memorandum of costs is correct. However, a party may contest the costs that a prevailing party seeks. (Code Civ.

Proc., § 1034 subd. (a).) The
challenging party has the burden of demonstrating that those costs are
unreasonable or unnecessary. (Adams
v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

Because the request is unopposed, the court grants
Plaintiffs' request for \$2,546.53 in costs.

CONCLUSION and ORDER

Plaintiffs' motion is granted in the reduced
amount of \$24,439.03: \$21,892.50 in attorney fees and \$2,546.53 in costs. The court denies the request for a lodestar
multiplier.

Plaintiffs to give notice.

[1] Although
Defendants failed to identify specific time entries, court performed its own
review of the billing statement.